

OPINION

# Why governments must embrace the new global digital reality

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On Jan. 28, 2011, in the middle of a popular uprising, the president of Egypt turned off the Internet. This striking display of state power is well known. Less well known is how the Internet was turned back on.

Around the world, hackers and activists who belong to a collective known as Telecomix began to re-establish network connections in Egypt. They arranged with a hacker-friendly French Internet service to provide hundreds of dial-up modem lines, sought out amateur-radio enthusiasts to broadcast short logistical messages, faxed leaflets to university campuses and cyber cafés explaining how to get around the blackouts, and used the same tactic to get news out of Egypt.

Telecomix is one of a new breed of actor taking part in international conflict. When the Arab Spring moved to Syria, this new breed included hackers from Anonymous who took down government infrastructure, crisis mappers who crowd-sourced the analysis of tank locations, citizens who streamed the bombardment of cities to YouTube, and networks of amateur experts who used these videos to trace the origins of munitions.

These groups do not fit comfortably in traditional categories: They are not nation-states, formal institutions or rogue individuals. Instead, they share characteristics and capabilities that are fundamentally technology-enabled.

They are formless. You can't join them, because they are not organizations; you can't lead them, because there is no leader; and most engage while cloaked in encryption and pseudonyms. All this stands in direct contrast with the hierarchical structures that give traditional institutions strength.

So how are we to understand those who have strength without structure? First, by realizing that they gain power because of, rather than in spite of, being decentralized and non-hierarchical.

Also, in a networked model, new actors require no one else to attain status – action, not affiliation, produces credibility and authority. Their identities derive from what they do and from the impact they have. As Swedish academic Jenny Sunden puts it, on the Internet, one "types oneself into being."

We are so used to equating organization with hierarchy that it comes as a surprise that disparate groups are even capable of joint ventures. But new forms of ad hoc governance are emerging to regulate collective behaviour, including the Pirate Party's notion of liquid democracy and the way in which Anonymous uses chat rooms to mobilize and co-ordinate its members.

In fact, the way power is exercised in the digital space presents a crisis for the state. First, states no longer have a monopoly on the ability to shape the behaviour of large numbers of people.

Second, while governments have all the legacy burdens of other hierarchical 20th-century institutions (lethargy, waste, layers of bureaucracy, slow adaptation), unlike private companies, they cannot simply go bankrupt. When Tesla disrupts Ford, we may end up with better cars, but when governments are challenged, we risk losing the collective social goods they were built to ensure.

Third, because groups like Anonymous are empowered by lack of structure and other "problems" the modern nation state was designed to overcome, the result is a misalignment of the norms and institutions that govern the international system and the mechanisms that increasingly create power.

Finally, what empowers digital players that are perceived to be nefarious is the same as what leads free expression, knowledge creation and economic development to flourish online. By targeting the Internet and digital networks, states also risk shutting down all the positive benefits that they allow: They risk breaking the network itself.

One of the central challenges of this century will be determining whether the norms of behaviour, democratic processes and mechanisms of accountability through which we give the state legitimacy will thrive in this new international ecosystem. This will require leadership from governments themselves.

Our current global institutions were designed by, built for and are run by those who had power in the 20th century. But what would an international organization look like that included those with power in the digital world, such as Anonymous and Telecomix?

States also must work to protect the notion of a single Internet. The social and economic good that comes from an open, secure and free Internet far outweighs the actions of perceived enemies. This means scaling back the rapidly growing surveillance state and rethinking actions that threaten the very capacity of the online system, such as efforts to break encryption. Rather than treating the Internet as a battlefield it must control, the state should be working to support the very technologies that empower and protect so many.

This will entail accepting new norms of self-regulation and network governance and determining effective ways of bringing the values of the democratic nation-state into these new processes, rather than seeking to control them.

There remains an alternate temptation, however: seeking absolute control of the digital ecosystem. This mentality underlies much of the Canadian government's proposed counterterrorism law, Bill C-51. By giving sweeping new surveillance powers to both security services and domestic police, these policies not only threaten the network infrastructure that benefit so many, but risk suffocating the spaces for dissent on which social and political progress are built.

The Treaty of Westphalia, signed in 1648, ended almost a century of instability and conflict between disparate empires. Once absolute ruling powers, these empires were losing control over both their territory and their citizens. By legitimizing the state rather than the crown as the primary sovereign unit, the treaty created order out of chaos.

We face a similar moment today. Yet to be seen is whether a digitally enabled world can undergo a similar restructuring without the loss of the chaos, messiness and disorder that generate its power.